Amendment of section 10AA.

6. In section 10AA of the Income-tax Act, with effect from the 1st day of April, 2024,—

(*a*) in sub-section (1), after clause (*ii*) and before the *Explanation*, the following proviso shall be inserted, namely:—
"**Provided** that no such deduction shall be allowed to an assessee who does not furnish a return of income on or before the due date specified under sub-section (1) of section 139.";

(*b*) after sub-section (4), the following shall be inserted, namely:—
'(4A) This section applies to a Unit, if the proceeds from sale of goods or provision of services is received in, or brought into, India by the assessee in convertible foreign exchange, within a period of six months from the end of the previous year or, within such further period as the competent authority may allow in this behalf.
Explanation 1.—For the purposes of this sub-section, the expression "competent authority" means the Reserve Bank of India or the authority authorised under any law for the time being in force for regulating payments and dealings in foreign exchange.
Explanation 2.—The sale of goods or provision of services shall be deemed to have been received in India where such export turnover is credited to a separate account maintained for that purpose by the assessee with any bank outside India with the approval of the Reserve Bank of India.';

(*c*) in *Explanation 1*, for clause (*i*), the following clause shall be substituted, namely:—
'(*i*) "convertible foreign exchange" shall have the meaning assigned to it in clause (*ii*) of the *Explanation 2* to section 10A;
(*ia*) "export turnover" means the consideration in respect of export by the undertaking, being the Unit of articles or things or services received in, or brought into, India by the assessee in convertible foreign exchange in accordance with the provisions of sub-section (4A), but does not include freight, telecommunication charges or insurance attributable to the delivery of the articles or things outside India or expenses, if any, incurred in foreign exchange in rendering of services (including computer software) outside India;'.